Ordinance #25-022Z

Town of North Providence Rhode Island

An Ordinance Amending the Town of North Providence Zoning Ordinance

AN ORDINANCE TO AMEND ARTICLE II SECTION 203(h), DISTRICT USE REGULATIONS. ARTICLE 8-DEFINITIONS AND ARTICLE V, STANDARDS FOR A SPECIAL USE PERMIT OF THE ZONING ORDINANCE OF THE TOWN OF NORTH PROVIDENCE TO CREATE A USE CODE FOR CANNABIS RETAILERS PROVIDING AN ASSOCIATED DEFINITION AND OBJECTIVE CRITERIA FOR SPECIAL USE PERMITS THESE RETAILERS ARE PROPOSED TO BE PERMITTED UNDER

WHEREAS, the Town Council of the Town of North Providence desires to amend by Ordinance, its existing Zoning Ordinance with regard to use in the Manufacturing General (MG) Zoning district.

NOW THEREFORE, BE IT ORDAINED BY THE TOWN COUNCIL OF THE TOWN OF NORTH PROVIDENCE AS FOLOWS:

Section 1. Amend the Use table at Article 2 Section 203 as follows:

H: Retail Business	R12	R8	RL	RG	IS	CP	CV	CG	ML	MG	OS
27. Cannabis Retailer (medical and recreational	N	N	N	N	N	N	N	N	N	S	N

Section 2. Amend Article XIII- Definitions, by adding the following definition

Cannabis Retailer: A business that deals with the commercial retail sale of marijuana products both medicinal and recreational.

Section 3. Amend Article 5: Standards for Special Use Permit

31. Cannabis Retailer:

a. Marijuana retail establishments shall be located no closer than 500-foot from any schools, religious institutes or child daycares, adult daycares, playgrounds, parks, or anywhere where children congregate as measured property line to property line.

b. The marijuana retail establishment shall be located no closer than 300 feet from any residentially used property, measured property line to property line.

c. Minimum lot size .5 acres (21,780 sqft)

d. Windows and doors and other openings to the building must be located, screened, covered, or treated to prevent the views of the interior from public view.

e. That a copy of all state licensing is provided as part of the application

f. That a detailed security plan outlining security measures for the site, transportation, and theft prevention is approved by the North Providence Police Department

g. That a comprehensive odor control plan is submitted detailing how the proposed operation will control odorous emissions.

h. That a traffic control plan that demonstrates compatibility with both the surrounding circulation network and onsite traffic pattern.

i. That a densely planted vegetative buffer at least 5 feet in height at the time of planting (and maintained in good health after planting) as well as a 6-foot fence is installed to screen the property from all residentially used properties.

j. That hours of operation are limited to 9 am to 9 pm.

K. No imagery of marijuana buds, leafs, flowers, plants, paraphernalia or other marijuana related images are permitted to be included on any signage.

L. That the gross floor area of customer accessible area is not to exceed 5,000 square feet.

M. No manufacturing permitted onsite.

N. That the use of marijuana products is not permitted on site and appropriate signage is posted discouraging the on-site use.

O. Drive thru use is not permitted

P. In house and 3rd party delivery services are not permitted.

THIS ORDINANCE CHALL TAKE EFFECT UPON ITS ADOPTION

APPROVED AS TO FORM AN LEGLITY:

Town Solicitor

Adopted February 3, 2026

Council President

Approved February 5, 2026

Mayor

Maryann Georgelas

Town Clerk